

representative, and had not addressed the opposition division. This amounted to an important difference from the facts of case **G. 2/94**, where a former member of the boards of appeal had presented his case before his former colleagues. In the case at issue, the former member had given only hints by whispering to the authorised representative, who had been absolutely free to accept them or not, but had not made any intervention of his own motion. The appellant's representative had agreed at the beginning of the oral proceedings to his sitting beside and assisting the respondent's representative. The request for reimbursement of the appeal fee was thus refused.

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1. Composition of the competent departments of first instance

Art. 18(2) and Art. 19(2) EPC respectively govern the composition of examining divisions (see in this chapter III.K.1.2.) and opposition divisions (see in this chapter III.K.1.3.). Both examining and opposition divisions can add a legally qualified member to their number where they deem this to be necessary. General comments on changes in their composition appear in the next section (III.K.1.1.).

1.1. General comments on changes in composition of the competent departments of first instance

In T 390/86 (OJ 1989, 30) the board held that a decision given orally at the oral proceedings must be written up on behalf of – and represent the views of – the members appointed to decide the proceedings. The written reasons for a decision delivered during oral proceedings can only be signed by members of the deciding body who took part in the oral proceedings. The same principle applies if between the orally delivered decision and the written decision proceedings in accordance with R. 58(4) EPC 1973 have taken place. If the written decision is signed by persons who did not constitute the opposition division during the oral proceedings, the decision is invalid. In T 1652/08 the board held that where the change in the composition of the opposition division occurs **prior** to the oral proceedings, this is not by itself a breach of the right to a fair hearing (see also T 2365/11, T 2344/16 and T 1090/18). Similarly, the board in T 160/09 read T 390/86 to mean that it did not prohibit the composition being changed. There was nothing to preclude changing the composition of an examining division, nor was the EPO required to follow a particular procedure to do this. In T 1207/09 the board went along with this reading of T 390/86,

concluding that it could not be construed as prohibiting a change in the examining division's original composition prior to oral proceedings.

In T 2348/19 the board held that if a member of the department of first instance, who participated in the oral proceedings before that department, is unable to act at the time the reasoned decision is to be issued, for example due to death or a longer lasting illness, one of the other members may sign on behalf of the incapacitated member. However, in such a situation, a written explanation as to why one member is signing on behalf of another must be provided. In the absence of such an explanation, the contravention of R. 113(1) EPC constitutes a substantial procedural violation.

1.2. Examining division

Art. 18(2) EPC stipulates that an examining division must consist of three technical qualified examiners. If the examining division considers that the nature of the decision so requires, it shall be enlarged by the addition of a legally qualified examiner.

In T 714/92 the board held that the taking of a decision on a date on which the examining division no longer existed in its stated composition, without the examining division ensuring that it be apparent from the part of the file open to public inspection that the member who left the examining division had agreed the text of the decision before leaving, had to be considered as a substantial procedural violation. Thus the impugned decision was set aside as void ab initio and without legal effect.

In T 160/09 the board found it permissible for the second examiner at oral proceedings to be different from the one who signed the summons. This was not at all comparable to the situation in T 390/86 (see in this chapter III.K.2.2.), where the written decision had not been signed by those members of the opposition division who had delivered the decision during oral proceedings. There is no prohibition on changing the composition of a division, nor is the EPO required to follow a particular procedure to do this.

1.3. Opposition division

Art. 19(2) EPC stipulates that an opposition division must consist of three technical examiners, at least two of whom must not have taken part in the proceedings for grant of the patent to which the opposition relates. An examiner who has taken part in the proceedings for grant of the patent may not be chairman of the opposition division.

1.3.1 Enlargement of the opposition division by addition of a legal member

Under Art. 19(2), fifth sentence, EPC, the opposition division can enlarge its composition by adding a legally qualified member where it deems this to be necessary.

In T 990/06 the board held that the opposition division's composition should be clear and transparent at all crucial stages of the proceedings so that the parties could verify compliance with Art. 19(2) EPC 1973 and check that the division members were impartial in keeping with G 5/91 (OJ 1992, 617). It is essential that the opposition division's

composition is lawful. Any doubt surrounding this casts doubt on the lawfulness of the decision. In the case in question, there were discrepancies between the documents issued to the parties and an internal instruction. Although the division had apparently been first enlarged and then reduced again in size, there was no information about either of these measures on file, so the board was unable to verify whether the decision given at the oral proceedings had been made by a lawfully composed opposition division and whether the written reasons for the decision had been issued by the same panel. The procedure for enlargement of the opposition division by addition of a legally qualified member under Art. 19(2) EPC 1973 – or their later withdrawal – must be verifiable.

In T 1254/11 the board held that an opposition division enlarged to four members pursuant to Art. 19(2) EPC 1973 could in principle be reduced again to three members. It was for the four-person panel to decide on the reduction. In this respect the board concurred with T 990/06. In deciding on the reduction, the opposition division consisting of four members must properly exercise its discretion. The board assumed *arguendo* that the fact that neither a decision to enlarge nor a decision to reduce the opposition division had been added to the publicly available file and the fact that the appointment of the new chairman could only be traced from the internal register of the EPO both constituted fundamental deficiencies of the proceedings before the opposition division. However, unlike in T 990/06, it was possible to determine from the file that the division had been lawfully enlarged and, at a later stage, lawfully reduced again.

In T 1088/11 the board held that in principle, an opposition division may set aside a decision to enlarge its composition. However, where an opposition division has been enlarged according to Art. 19(2) EPC, but the case is nevertheless decided in a composition of three members, there should be clear evidence on the public file that a decision to set aside enlargement was taken by the opposition division in its four member composition prior to the final decision.

1.3.2 Change in composition of opposition division during opposition proceedings

In T 390/86 (OJ 1989, 30) all three members of the opposition division were changed between the oral and written decision. The board held that a decision must at least be written on behalf of and represent the views of the members appointed to decide the proceedings, and must bear signatures which indicate this (see also T 243/87, T 960/94 and T 2076/11).

In T 243/87 the board of appeal developed the principles established in T 390/86, further holding that even though only **one** member of the opposition division had been replaced after the oral proceedings, there was no longer any guarantee that the reasoned decision signed subsequently accurately reflected the point of view of all three members who had taken part in the oral proceedings. The situation in which one of the appointed members was incapacitated (e.g. through illness) was quite different; in such cases one of them could sign on behalf of the member unable to do so after checking that the reasoned written decision represented the point of view of all the members who had taken part in the oral proceedings. This was followed in other cases where only one member of the